Australian Institute of Architects

2024 Client Architect Agreement (CAA2024)

CLIENT ARCHITECT AGREEMENT

Australian Institute of Architects

AGREEMENT MADE ON 21 / 02 / 1957 **BETWEEN:**
(insert date when the last person signs)

THE CLIENT

Name The Government of New South Wales

ABN n/a (1957) Client's representative The Hon. J. J. Cahill MLA, Premier of NSW

Address Premier's Department, Sydney NSW

Telephone n/a Email n/a

Sign only the option below that is relevant to you

By signing below, you agree to be bound by the terms and conditions of this agreement and you consent to either party signing and entering into this agreement using an electronic method or signature:

1. If the Client is an individual, individual trustee, or partnership:

Signed Date

2. If the Client is a corporation, executed in accordance with section 127 of the *Corporations Act* 2001:

Signed director/sole director Signed director/secretary

Date Date

AND

THE ARCHITECT

The Architect is a person who is registered by the relevant Architects Registration Board.

Name Jørn Utzon, Architect Registration No. to be confirmed

ABN n/a (1957) Architect's representative Jørn Utzon

Address Hellebæk, Denmark

Telephone n/a Email n/a

By signing below, the Architect also consents to either party signing and entering into this agreement using an electronic method or signature:

1. If the Architect is an individual, individual trustee, or partnership:

Signed Date

2. If the Architect is a corporation, executed in accordance with section 127 of the *Corporations Act* 2001:

Signed director/sole director Signed director/secretary

Date Date

FOR

the Project:

A brief description of the Client's project scope:

National Opera House (now the Sydney Opera House): a large hall (about 3,000 seats) and a small hall (about 1,200 seats) for opera, concerts, ballet, drama and public meetings, with rehearsal, restaurant and back-of-house areas, on a raised podium under a roof of shell vaults. Built in stages: I podium, II roof, III interiors.

located at the Site:

The address or location of the site for the Project:

Bennelong Point, Sydney Harbour, Sydney NSW (site of the Fort Macquarie tram depot)

Cost of Works forecast:

The initial forecast which is subject to change during the Project is:

For the definition, see section M.

$ 9,600,000

(Note: *this amount is* exclusive *of GST. The Client pays the GST in addition to the Cost of Works as revised. See clauses A.3 and D.4.)*

Defined terms are in **Bold.** *For definitions, see* ***page 7****.* ***Item*** *means an item set out in* ***SCHEDULE B, page 13.***

A. SERVICES *(SEE SCHEDULES A AND B)*

A.1. Architect's Obligations

The Architect must:

1. deliver the **Services** described in this agreement with the reasonable skill, care and diligence expected of an architect who has experience with projects of a similar type, size, complexity and value to the **Project**;
2. act as the Client's agent for the **Project** and, if included in the **Services**, as required under the selected building contract;
3. maintain accurate records and keep the Client informed of progress at all stages by way of meetings, reports and other means;
4. notify the Client promptly when an instruction from the Client or any other requirement changes the scope of **Services** or requires services that are not delivered under this agreement;
5. notify the Client of any matter connected with the **Services** that may give rise to an ethical or regulatory conflict of interest;
6. if a conflict of interest arises, notify the Client and (if required) suspend the services until the conflict is removed or the agreement is terminated under section K, in which case clause K.2.1 applies;
7. comply with the applicable **Code of Practice**; and
8. maintain all necessary registration and accreditations to deliver the **Services** in the state or territory of the **Site**.

A.2. Services or Responsibilities Not Included

Despite anything expressed or implied elsewhere in this agreement, the parties acknowledge and agree that:

1. the Architect is not responsible for ensuring the constructed **Project** complies with the building contract documents, but if the Architect performs contract administration services as part of the **Services**, will instruct the building contractor regarding requirements of the building contract documents according to the contract terms;
2. the Architect gives no express or implied warranty that the **Project**, the **Services,** or **The Design** is fit for the Client's purposes;
3. any natural materials selected for a project may change in appearance or dimension following exposure to use or climatic conditions and this is normal behaviour for such materials;
4. the scope of the **Services** does not include any services relating to or in connection with asbestos, other hazardous materials, or any other site contaminant;
5. on completion of the works, the Client is responsible for ongoing and regular maintenance of the **Project**, including its systems, finishes and equipment;
6. the Client bears the full risk and responsibility for items, materials, fixtures and fittings sourced or supplied and requested by the Client to be incorporated into the **Project**; and
7. the Client releases and indemnifies the Architect from any claim arising from or in connection with each of the acknowledgements and agreements in this clause A.2.

A.3. The Cost of Works

1. The Client agrees that its budget for the **Total Project Cost** appropriately takes into account the initial budget for the forecast **Cost of Works** set out on page 1 of this agreement.
2. The forecast **Cost of Works** may be revised during the **Project** and such revisions must be in accordance with advice of the Architect, any other consultant advice, tenders or offers received and any adjustments during construction.
3. Whenever revised forecasts of the **Cost of Works** are prepared in accordance with clause A.3.2 above, the Client accepts the revised forecast **Cost of Works** and will adjust its **Total Project Cost** budget accordingly.
4. Forecasts of the **Cost of Works** are indicative only and do not guarantee the actual **Cost of Works**. The Architect cannot and does not guarantee the final, actual Cost of Works.

A.4. Program of Services

1. The Client must inform the Architect of the initial program for the **Project** and from this, the Client and the Architect will discuss and co-operate on an initial program for the **Services**.
2. The parties may revise the initial program during the **Project** by mutual agreement.

A.5. Protracted Services

1. If the **Services** are protracted by any cause beyond the Architect's control:
   a. the Architect must promptly notify the Client of the cause and, if possible, the anticipated extent of the delay;
   b. the parties must meet to negotiate in good faith and agree a change to the **Fee** in accordance with clause D.8; and
   c. at that meeting, the parties must also negotiate in good faith a reasonable revised program under clause A.4.2.
2. If the parties do not agree a change to the **Fee** and a revised program, either party may terminate this agreement effective immediately by giving the other party a notice to this effect and if so, clause K.2.1 will apply.

A.6. Suspended Services

1. If the **Services** are suspended for any reason by the Client or the Architect:
   a. the Architect is entitled to payment of all **Fees** and **Disbursements** due under this agreement up to the date the **Services** are suspended; and
   b. all other rights and entitlements of the Architect continue as though the suspension had not taken place.
2. If the **Services** are suspended by the Client or under clause D.3.3, the Architect is also entitled to be reimbursed all reasonable costs it actually incurs associated with the suspension, including resuming the **Services**.

B. CLIENT OBLIGATIONS

The Client agrees to:

1. appoint the Architect to act as its agent for the **Project** as necessary for the Architect to carry out the **Services**;
2. when a building contractor has been appointed and if contract administration forms part of the **Services**, only issue instructions for the building contractor through the Architect;
3. co-operate with the Architect to determine a reasonable budget for the **Cost of Works**;
4. in a timely way provide all information, **Client Information** and **Site** information, required by the Architect to complete the **Services**;
5. co-operate fully with the Architect to ensure efficient and satisfactory progress through all stages of the **Project**, including giving prompt decisions and approvals for the **Services**;
6. engage directly the **Specialist Consultants** specified in Item 4, after consultation with the Architect, on the conditions in clause E.1;
7. allow the Architect reasonable access to photograph or otherwise record the **Project** before or after completion;
8. allow the Architect to publicise the **Project** including for marketing purposes or awards, unless the parties agree otherwise;
9. attribute the Architect in accordance with clause F.2;
10. comply with the Architect's reasonable requirements or directions in respect of access to the **Site**;
11. notify the Architect of any details of the **Project** that the Client requires the Architect to keep confidential.

C. ADMINISTRATION

The parties acknowledge and agree that:

1. the Client authorises the Architect to proceed with the **Services**;
2. the person named in this agreement as the party's representative is authorised to exercise all rights, powers, authority and functions of the party it represents under this agreement; and
3. either party may, at any time, replace its nominated representative and must notify the other party of any such replacement.

D. FEES *(SEE SCHEDULE B)*

D.1. Fees payable

In exchange for delivering the **Services**, the Client must pay to the Architect:

1. the **Fee**; plus
2. all adjustments to the **Fee** as determined in accordance with the agreement; plus
3. **Disbursements**, if applicable.

D.2. Submitting Claims

The Architect may each month submit to the Client one claim for payment (including GST) in the form of a tax invoice. The claim must clearly state those amounts that relate to the **Fee** and **Disbursements** being claimed.

D.3. Paying Claims

1. The Client must pay the amount in a claim for payment (including GST) within the period stated in Item 7A and if no time is stated, then within 10 business days after receiving it.
2. The Client must pay interest at the rate set out in Item 7B on all payments not made by the date for payment set out in the agreement. Interest is calculated daily on and from the date that payment was due.
3. If any payment under this agreement is overdue, the Architect is entitled at its discretion to suspend the **Services** and if so, clause A.6 will apply.
4. The total lump sum fee or percentage fee stated in Item 1, overrides any error, omission or ambiguity in the amounts allocated to the separate components of the **Services** in Item 1 or claimed at any stage prior to the final claim for payment.

D.4. Percentage Fee

1. If a percentage fee is selected and applies under Item 1 for a component of the **Services**, the total **Fee** the Client must pay for that component is that percentage multiplied by the **Cost of Works**.
2. Subject to clause D.4.3, percentage fees are calculated and adjusted progressively against the forecast **Cost of Works** and are subject to final adjustment against the final **Cost of Works** when known.
3. The Client is not entitled to recover any part of the **Fees** that it has previously paid to the Architect for **Services** that have been performed if the scope of **Services** is reduced or the **Project** has changed, reducing the final **Cost of Works**.

D.5. Lump Sum Fee

If a lump sum fee is selected and applies for a component of the **Services** under Item 1, the total **Fee** the Client must pay for that component is the amount stated in Item 1.

D.6. Time-based Rate Fee

1. If a time-based rate fee is selected and applies under Item 1 for a component of the **Services**, the total **Fee** the Client must pay for that component is the rate in Item 2 multiplied by the time units incurred (based on the time units incurred by the Architect's personnel engaged) to provide that component of the **Services**.
2. If the Client requests, the Architect must, within 7 days of the request, give the Client time sheets or other records to show all actual time units spent on the **Project**.
3. All hourly, daily and monthly rates stated in Item 2 are subject to annual review in line with the Consumer Price Index (All Groups).

D.7. Disbursements

1. The Client must either pay to or reimburse the Architect those **Disbursements** listed in Item 3.
2. **Disbursements** are subject to an additional 15% fee to cover the Architect's administration costs if indicated in Item 3 and this administration fee will be payable at the same time as the payment or reimbursement of the **Disbursement**.

D.8. Change to the Services

1. If during the course of this agreement, the Architect considers that the **Project** requires a greater or reduced scope of **Services**, the Architect must promptly notify the Client how that change will affect the **Fee**. Then, the parties must negotiate in good faith and agree:
   a. the changed scope of **Services**;
   b. the changes to the **Fee** in Item 1 and any **Disbursements** in Item 3 (as appropriate);
   c. the date which any changes will take effect; and
   d. if any **Services** the subject of the change have already been performed: the reimbursement due to the Architect.
2. If the parties agree to a change under clause D.8.1:
   a. the parties must record their agreement to each of those changes in writing (including by email);
   b. the **Services** and **Fees** under this agreement will be varied as from the date agreed by the parties; and
   c. in the case of any agreed reimbursement for **Services** performed, the Architect will be entitled to include this amount in its next claim for payment.
3. If the parties cannot agree on the changed scope of **Services**, or a changed **Fee**, then either:
   a. the **Services** and the **Fee** will continue to apply without change; or
   b. if the Architect is no longer able to perform the **Services** because the parties cannot agree to a change, the Architect may terminate this agreement provided that it has given the Client 10 business days' notice of its intention to terminate and if so the parties then follow clause K.4.

E. SPECIALIST CONSULTANTS *(SEE SCHEDULE B)*

E.1. Specialist Consultant engagement

1. The Architect and the Client agree the **Project** will require the services of the **Specialist Consultants** specified in Item 4 (the **Specialist Consultants**).
2. Item 4 lists those **Specialist Consultants** to be engaged directly and paid by the Client, as well as those to be engaged directly and paid by the Architect as part of the **Fees**.
3. For each **Specialist Consultant** engaged directly by the Client, the Client will engage each **Specialist Consultant** on the basis that:
   a. the Client must pay the **Specialist Consultant** all its fees and disbursements and the Client may seek the Architect's confirmation that the **Specialist Consultant's** services as invoiced have been delivered;
   b. the Architect is authorised and responsible for coordinating the **Specialist Consultant's** services;
   c. the Architect is not responsible for the services delivered by the **Specialist Consultant**; and
   d. the Architect can use, and rely upon, the **Specialist Consultant's** deliverables to the extent required to perform the **Services**.

E.2. Additional Specialist Consultants

If the Architect and the Client agree that additional **Specialist Consultant** services are required beyond those specified in this agreement, such additional consultants may be:

1. engaged directly and paid by the Client; or
2. if the parties agree to a change under clause D.8, engaged directly and paid for by the Architect.

F. INTELLECTUAL PROPERTY & OTHER RIGHTS

F.1. Copyright

1. The Architect retains copyright in all **Services** and in **The Design**.
2. The Architect grants the Client an express, non-exclusive, non-transferrable, revocable licence to use **The Design** only for the **Project** on the **Site**, subject to the conditions that:
   a. no licence is granted or implied under this agreement other than the express licence in this clause F.1.2;

b the licence may be revoked by the Architect if any invoice that the Architect is entitled to submit under this agreement is overdue. The licence will be automatically reinstated when the Architect receives all overdue amounts; and

c the licence is automatically revoked by any event or action by the Client or a third party that changes or attempts to change the Client's ownership or legal interest in the **Site** in any way, however the Client may at any time request the Architect's consent to reinstate the licence and the Architect must not unreasonably withhold its consent.

3. The Client warrants that it will not:

a use **The Design** on another site;

b attempt to assign the licence to use **The Design**; or

c provide or disclose **The Design** to a third party;

unless the Architect has given the Client prior written consent to do so.

4. The Client must not do or fail to do anything which infringes any copyright or breaches another person's moral rights or any obligation of confidentiality, in relation to **Client Information**. If the Client or the **Services** require the Architect in any way to incorporate, adapt, vary or make any derivative of any **Client Information**, then the Client warrants that directing or permitting the Architect to use any **Client Information** in such a way, does not and will not:

a infringe another person's copyright; nor

b offend another author's moral rights; nor

c breach any actual or implied obligation of confidentiality.

5. On completion of all **Services** under this agreement and on full payment of all invoices that the Architect is entitled to submit under it, the licence in clause F.1.2 becomes irrevocable.

F.2. Moral Rights

1. The Client must attribute the Architect as the author of **The Design** in all digital, printed or audio information containing a 2- or 3-dimensional representation of the **Project** or **The Design**, or a part of it, whether the **Project** is complete or not.
2. The form of attribution that must be used is set out in Item 5.

F.3. Indemnity for specific breaches of section F

1. If the Client:

a uses **The Design**, or permits it to be used, in a way that is inconsistent with or in breach of clause F.1, or

b knows it can't give, or didn't take reasonable steps to ensure it could legally give, the warranty promises in clause F.1.4,

the Client indemnifies the Architect from all liability, loss and reasonable costs (including legal costs) the Architect actually and directly incurs due to any breach of clauses F.1.1, F.1.2, F.1.3 or F.1.4.

F.4. Electronic Data Transfer

The Client agrees that:

1. the Architect may issue data electronically to all parties involved in the **Project**;
2. the Architect is not responsible for the accuracy, completeness or any loss or contamination of electronically transmitted data, nor any degraded information due to translating the original file to a different digital format; and
3. the cost of preparing or converting digital data is to be reimbursed by the Client, as set out in Item 3.

F.5. Building Information Modelling (BIM)

If the parties agree to use **BIM** in the delivery of the **Services** and specify the relevant protocol applicable to **BIM** under this agreement in SCHEDULE A, the **Services** must comply with the expressly stated protocol (if any).

G. INSURANCES AND LIABILITY *(SEE SCHEDULE B)*

G.1. Insurances

For at least the duration of this agreement, the Architect must maintain:

1. professional indemnity insurance, for not less than the value stated in Item 6;
2. public liability insurance, for not less than the value stated in Item 6; and
3. insurance to cover liability for its employees in accordance with statutory requirements.

G.2. Liability

To the maximum extent permitted by law:

1. subject to subclauses 2 and 3 below, the Architect's maximum aggregate liability to the Client under this agreement (including the performance or non-performance of the **Services**), whether under the law of contract, in tort, in equity, under statute or otherwise, is limited to the net amount actually recovered under the Architect's professional indemnity insurance policy;
2. the Architect has no liability to the Client in respect of any indirect, consequential or special losses (including loss of profit, loss of contract, loss of business opportunity and payment of liquidated sums or damages under any other agreement or settlement); and
3. if any of this clause G.2 is void as a result of section 64 of the Australian Consumer Law (or equivalent state or territory legislation) then the Architect's liability for a breach of a condition or warranty is limited to (at the Architect's choice):

a supplying the relevant **Services** again; or

b paying or reimbursing the cost of having the **Services** supplied again by the Architect.

H. GENERAL CONDITIONS

1. Any consent, approval, request, notification or notice given or required under this agreement must be given in writing (which includes email).
2. Variations to this agreement that are agreed between the parties will not be effective unless and until put in writing and accepted by both parties (which includes email).
3. Except by operation of law, neither party can assign, novate or transfer this agreement without obtaining the prior consent of the other party.
4. The applicable law of this agreement is the law of the state or territory in which the **Site** is located, unless it is outside Australia, in which case it is the law of the state or territory of the Architect's address stated in this agreement.
5. Nothing in this agreement makes ineffective, or reduces, the protection at law from liability which either party is entitled to in the state or territory of the applicable law.
6. This agreement supersedes all prior agreements, representations or understandings between the Client and the Architect in relation to the **Project** and constitutes the entire agreement.
7. This agreement applies to all services delivered by the Architect before the formal execution of this agreement.
8. A notice or other document that is sent in connection with this agreement by mail will be deemed to have been received 5 business days (10 business days in the case of overseas mail) after it is posted.
9. If a notice is sent by email after 5.00 pm, the email will be deemed to have been delivered at the beginning of the next business day.
10. Unless otherwise stated, all figures are in Australian dollars and are exclusive of GST.

J. DISPUTE RESOLUTION

1. Without limiting the Architect's rights under clause D.3.3, if a dispute arises out of or in relation to this agreement, the Client and the Architect must continue to perform their obligations under the agreement.
2. When a dispute arises:
   a. either party may deliver a notice to the other party outlining the details of the dispute and requiring a meeting within 5 business days of the date of the notice to make a bona fide attempt to resolve the dispute or difference;
   b. if the dispute is not resolved by that meeting or if the parties fail to meet, either party may submit the dispute to mediation by delivering to the other a proposal of mediation;
   c. a proposal of mediation must state the name of a mediator accredited by the Resolution Institute in the state or territory of the law that applies, who is independent and willing to act;
   d. if the parties do not agree on the mediator within 5 business days after the proposal is delivered, the Chair of the Resolution Institute in the place of the law that applies, must be requested to nominate the mediator;
   e. the mediation must then proceed in accordance with the rules of the Resolution Institute for mediation except that in no case will one party be required to pay more than half of the costs of mediation; and
   f. if the parties are unable to resolve the dispute by mediation, confirmed by the mediator in writing, either party may only then take legal action to resolve the dispute.

K. TERMINATION

K.1. Termination for the Client's breach

1. Without affecting other rights or entitlements, the Architect may terminate this agreement immediately by notice if, in the opinion of the Architect, the Client breaches or does not strictly comply with a material provision of this agreement. Material provisions of the agreement include (but are not limited to) clauses B and D.3. The Architect's notice must identify the material provision that the Client has breached. The parties then follow clause K.4.

K.2. Termination, without reason

1. Either party may at any time, without reason, terminate this agreement by giving the other party no less than 30 business days' notice of the intention to terminate the agreement. The parties then follow clause K.4.

K.3. Termination for the Architect's breach

The Client may immediately terminate the Agreement by notice to the Architect, if the Architect:

1. is insolvent or bankrupt (as relevant); or
2. commits a material breach of its obligations under clause A.1 or G.1 of this agreement and has failed to remedy the breach within 10 business days after receiving a written notice from the Client that specifies the breach and includes a reference to this clause K.3.2.

K.4. Consequences, obligations and limitations of terminating

1. If either party properly terminates this agreement under this section K or clause D.8:
   a. without prejudice to any claim the Architect may have against the Client, the Client must promptly pay:
      - the amount due to the Architect for all **Services** completed prior to the date of the termination notice; and
      - the amount for all **Services** carried out and costs or expenses reasonably incurred by the Architect in connection with ending the **Services**, up to and including the termination date; and

b the Architect must, on receiving payment, issue to the Client a copy in PDF format of the relevant documents to be delivered under the **Services** up to the date of termination.

2. Except in the case the Client terminates this agreement under clause K.3.2 for an unremedied breach, the Client will have no claim in relation to the adequacy or completeness of the **Services** nor any documents delivered by the Architect under clause K.4.1.b.

K.5. Surviving obligations

The rights, obligations and effect of clauses B.7, B.8, B.9, F.1, F.2, F.3, G.2, H.4, K.4 and this clause K.5 survive and continue to be in effect even if this agreement ends or is terminated under section K or a special condition.

L. SPECIAL CONDITIONS

The parties agree to the special conditions stated in SCHEDULE C. These special conditions apply to and take precedence over all other terms of this agreement.

M. DEFINITIONS

Defined terms are shown capitalised and have the meaning and details given in the schedule on page 1 of this agreement and unless the context otherwise requires:

BIM means Building Information Modelling software and forms of digital data, or equivalent digital technologies and processes from time to time.

Client Information means all data, design, drawing, document or other information or materials given to the Architect for the purposes of the **Services**, whether provided by the Client or created on behalf of the Client.

Code of Practice means the Australian Institute of Architects' Code of Professional Conduct (if it applies to the Architect) and where the **Services** are performed in:

1. Australian Capital Territory, a code of conduct issued under the *Architects Act 2004* (ACT),
2. New South Wales, the code of conduct issued under the *Architects Act 2003* (NSW) or the *Architects Regulation 2017* (NSW);
3. Northern Territory, a code of conduct issued under the *Architects Act 1963* (NT) or the *Architects Regulations 1965* (NT);
4. Queensland, the code of conduct issued under the *Architects Act 2002* (QLD) or the *Architects Regulation 2019* (QLD);
5. South Australia, the code of conduct issued under the *Architectural Practice Act 2009* (SA) or the *Architectural Practice (General) Regulations 2010* (SA);
6. Tasmania, the code of conduct issued under the *Architects Act 1929* (TAS) or the *Architects Regulations 2023* (TAS);
7. Victoria, the code of conduct issued under the *Architects Act 1991* (Vic) or the *Architects Regulations 2015* (Vic); and
8. Western Australia, a code of conduct issued under the *Architects Act 2004* (WA) or the *Architects Regulation 2005* (WA);

as amended or replaced from time to time.

Cost of Works is the final cost of all work designed, specified or scheduled by the Architect, including all work designed, specified or scheduled by **Specialist Consultants** coordinated by the Architect, including:

1. the final adjusted contract price (excluding GST) in accordance with a building contract for the **Project**, plus
2. the equivalent final cost (excluding GST) of work or items supplied by the Client to the building contractor (as if provided by the building contractor under the building contract), plus
3. the final cost (excluding GST) of any part of the **Project** provided under a contract other than the building contract;

but excludes GST and the fees, costs and charges of:

4. an authority, agency or tribunal;
5. any other consultant; and
6. in connection with finance, removal or relocation.

The Design includes all design concepts, drawings and documents created in connection with, or delivered under the **Services**.

Disbursement means the disbursements payable in accordance with clause D.7, as set out in Item 3.

Fee means the fee for **Services** set out in Item 1 and calculated in accordance with clause D and includes the **Mobilisation Fee**, if applicable.

Mobilisation Fee means the lump sum amount set out in Item 1 (if any) to be paid by the Client to the Architect within 5 business days after the date of this agreement and is a non-refundable advance payment for **Services** delivered under this agreement.

Project means the project briefly described on page 1 of this agreement.

Services means the services described in SCHEDULE A.

Site means the location identified on page 1 of this agreement.

Specialist Consultant has the meaning given in clause E.1.

Total Project Cost is the **Cost of Works** plus all other costs to the Client associated with the **Project**, including but not necessarily limited to:

1. removal and relocation costs
2. design and construction contingencies, including escalation costs
3. architectural, consultant and other professional fees
4. authority fees and charges
5. legal fees
6. landscaping
7. loose or unaffixed furniture, fittings and equipment
8. finance charges, marketing and promotional costs.

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SCHEDULE A_ SCOPE OF SERVICES

Australian Institute of Architects

*The parties should mark **one** box in each line item below (as applicable) and add any additional services which are required.*

This Schedule A sets out the **Services** that are included and those available at an 'Additional' cost under this agreement. Only those marked as 'Included' will form part of the **Services** under this agreement. If no box has been marked for a line item, or in the case of any ambiguity, that item is 'Excluded' from the **Services**.

A CORE ARCHITECTURAL SERVICE

A.1 Concept Design

Pre-design:	Included	Excluded	Additional
• obtain the Client's design brief and other requirements	●	○	○
• arrange, attend and record meetings with the Client	●	○	○
• provide recommendations for the appointment of other Specialist Consultants as required, including their fees	●	○	○
• attend the Site and visually assess site conditions and constraints	●	○	○
• make initial inquiries regarding authority regulations and requirements	●	○	○
• arrange a geotechnical investigation of Bennelong Point before the foundations are designed	●	○	○

Design:	Included	Excluded	Additional
• arrange, attend and record meetings with the Client, authorities, other consultants and other relevant parties	●	○	○
• undertake preliminary assessment of authority regulations and requirements	●	○	○
• prepare sketches, diagrams and other information to adequately explain the concept	●	○	○
• prepare design briefs for other consultants	●	○	○
• coordinate a preliminary forecast of the Cost of Works	●	○	○
• undertake preliminary selection of materials and finishes	●	○	○
• provide Client with copies of design documentation in PDF format	●	○	○
• coordinate cost consultant's forecast of the Cost of Works	●	○	○
• resolve the roof shell geometry and structure with the structural engineer before the podium design is fixed	●	○	○

Approvals:	Included	Excluded	Additional
• obtain the Client's written approval of the Concept Design documents	●	○	○
• obtain the Client's written approval to proceed with Design Development	●	○	○
• obtain the Client's written approval to prepare the Town Planning/Development Application, as required	○	●	○
•	☐	☐	☐

A.2 Design Development

Developed design:	Included	Excluded	Additional
• develop the approved Design Concept and present documents and other information to adequately explain the developed design	●	○	○
• arrange, attend and record meetings with the Client	●	○	○
• arrange, attend and record meetings with authorities, other consultants and other relevant parties	●	○	○
• coordinate the work of other Specialist Consultants	●	○	○
• provide schedule of proposed materials and finishes	●	○	○
• review the developed design against the budget and coordinate the preparation of an updated forecast of the Cost of Works	●	○	○
• consult and attend preliminary meetings with relevant authorities regarding the developed design	●	○	○
•	☐	☐	☐

Approvals:	Included	Excluded	Additional
• obtain the Client's written approval of the developed design	●	○	○
• obtain the Client's written approval to submit Planning/Development Application, when required	○	●	○
• obtain the Client's written approval to proceed with Construction Documentation	●	○	○
•	☐	☐	☐

A.3 Planning/Development Application	Included	Excluded	Additional
• confirm statutory authority requirements	○	●	○
• attend pre-application meetings with relevant authorities prior to submission of formal application	○	●	○
• prepare application, including plans, diagrams, analyses, studies, reports and other information for the submission	○	●	○
• coordinate required Specialist Consultants on behalf of the Client	○	●	○
• assist the Client with lodging formal application	○	●	○
• coordinate preparation of an updated forecast of the Cost of Works	○	●	○
•	☐	☐	☐

A.4 Construction Documentation

Documents:	Included	Excluded	Additional
• arrange, attend and record meetings with the Client	●	○	○
• coordinate and integrate the work of other Specialist Consultants	●	○	○
• prepare drawings including plans, elevations and sections, together with other details and schedules to be submitted for statutory approval to construct the Project	●	○	○
• prepare specifications in accordance with the drawings and the Client's requirements describing the quality of materials, finishes and quality of work necessary to be submitted for statutory approval	●	○	○
• submit required documents for statutory approval	●	○	○
• prepare further drawings, specifications and schedules to enable the construction of the Project	●	○	○
• coordinate the preparation of a pre-tender forecast of the Cost of Works	●	○	○
• provide recommendations to the Client on the preferred method of building contractor selection	●	○	○
•	☐	☐	☐

Approvals:	Included	Excluded	Additional
• obtain the Client's written approval to submit for statutory approval	●	○	○
• obtain the Client's written approval of all construction documents	●	○	○
• obtain the Client's written approval to proceed with building contractor selection	●	○	○
•	☐	☐	☐

A.5 Contractor Selection

The **Services** include only one of the following two methods (1) or (2) for the selection of a building contractor:

(1) Tender:	Included	Excluded	Additional
• assist Client in determining the preferred tender process	●	○	○
• prepare tender documents and issue to all tenderers	●	○	○
• respond to enquiries from tenderers	●	○	○
• receive and open the tenders	●	○	○
• together with the cost consultant, if any, assess/evaluate the tenders	●	○	○
• negotiate with the preferred tenderer if required to obtain an offer acceptable to the Client	●	○	○
• prepare reports on tenders and recommendation for Client acceptance	●	○	○
•	☐	☐	☐

(2) Negotiated Offer:	Included	Excluded	Additional
• assist Client in determining the preferred negotiation process	○	○	●
• issue relevant documents to the prospective building contractor to describe the scope of the works	○	○	●
• arrange and coordinate negotiations and enquiries with the prospective building contractor	○	○	●
• together with the cost consultant, if any, assess/evaluate all submissions from the prospective building contractor required to establish the contract price and final Project scope	○	○	●
• prepare report and provide recommendations for Client acceptance	○	○	●
•	☐	☐	☐

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Approvals:	Included	Excluded	Additional
• obtain the Client's written approval to prepare the contract documents	●	○	○
•	☐	☐	☐

A.6 Contract Administration

Pre-construction:	Included	Excluded	Additional
• prepare one draft of the contract documents in the form previously approved by the Client in the 'Contractor Selection' phase	●	○	○
• arrange for signing and execution of the building contract documents by the building contractor and owner	●	○	○
•	☐	☐	☐

Construction:	Included	Excluded	Additional
• administer the building contract under its terms	●	○	○
• issue copies of construction documentation to the building contractor and issue amended documents as needed	●	○	○
• report regularly to the Client regarding time, cost and progress of the Project	●	○	○
• visit the Site periodically to observe the general conformance of the construction works with the building contract documents and instruct the building contractor regarding design quality control, materials selections and performance in regard to the building contract documents	●	○	○
• arrange, attend and arrange for recording of site meetings at regular intervals	●	○	○
• review shop drawings and submissions by the building contractor	●	○	○
• provide the building contractor with instructions, supplementary details and clarification of the contract documents	●	○	○
• coordinate the construction services provided by other Specialist Consultants	●	○	○
• assess and determine variations and obtain Client approvals in writing when required	●	○	○
• assess and determine the building contractor's progress claims and issue progress certificates	●	○	○
• assess the building contractor's claims for adjustments of time	●	○	○
• adjust prime cost and provisional sums and other monetary sums	●	○	○
• instruct the building contractor in regard to incomplete work and rectification of any defects	●	○	○
• assess and determine practical completion and issue the notice of practical completion	●	○	○
• administer a separate building contract for each stage (I podium, II roof, III interiors)	●	○	○

Post-construction:	Included	Excluded	Additional
• during the defects liability period, instruct the building contractor in regard to incomplete work and rectification of defects	●	○	○
• if required, advise the Client and coordinate the procedure for the rectification of any defective work by others	●	○	○
• assess and determine final completion and issue the final certificate	●	○	○
•	☐	☐	☐

B. ADDITIONAL ARCHITECTURAL SERVICES

B.1 Feasibility Study	Included	Excluded	Additional
• establish with the Client the Project objectives and constraints	○	●	○
• arrange, attend and record meetings with the Client, consultants and other relevant parties	○	●	○
• review statutory planning controls and guidelines	○	●	○
• analyse Site opportunities and constraints	○	●	○
• prepare relevant functional relationship and spatial diagrams	○	●	○
• determine key financial indicators for the Project	○	●	○
• prepare report and provide recommendations for Client acceptance	○	●	○
•	☐	☐	☐

B.2 Record documents	Included	Excluded	Additional
• undertake detailed photographic survey of existing Site and buildings	○	●	○
• coordinate survey of existing Site and building conditions by Specialist Consultants	○	●	○
• undertake detailed existing building measurement	○	●	○
• prepare drawings showing existing buildings, visible services and finishes	○	●	○
• prepare record documents showing completed buildings, visible services and finishes	○	●	○
•	☐	☐	☐

B.3 Planning/Development Application: Negotiation	Included	Excluded	Additional
• arrange, attend and record meetings with the Client	○	●	○
• as directed by the Client, negotiate and attend meetings with relevant authorities, adjoining owners or other relevant parties	○	●	○
• prepare additional drawings and documentation and/or amend existing drawings and documentation to comply with additional authority requirements or compliance assessment	○	●	○
• submit additional or revised documentation to the relevant authority for endorsement	○	●	○
• assist the Client in preparing instructions for relevant Specialist Consultants	○	●	○
• prepare additional documentation or evidence for planning courts or tribunals	○	●	○
• attend hearings and give evidence at planning courts/tribunals	○	●	○
•	☐	☐	☐

B.4 Illustration	Included	Excluded	Additional
• provide 2D marketing drawings	○	○	●
• provide 3D illustrations	○	○	●
• provide digital animations	○	●	○
•	☐	☐	☐

B.5 Trade Package Documentation	Included	Excluded	Additional
• assist Client-appointed programmer (or programmer appointed by selected building contractor/construction manager/ project manager) in preparation of agreed program trade documentation packages	○	●	○
• provide documentation, including relevant drawings, specifications and schedules in trade package format	○	●	○
• provide matching specification for each trade package	○	●	○
• provide set of standard preliminaries suitable for inclusion with all trade package documentation	○	●	○
• co-ordinate Client-appointed consultants in preparing trade package documentation for specialist sections of the works	○	●	○
• assist Client-appointed building contractor/construction manager/project manager in responding to queries from trade contractors	○	●	○
•	☐	☐	☐

B.6 Other Services	Included	Excluded	Additional
• preparing for Planning tribunal proceedings	○	●	○
• preparing additional documentation for Planning tribunal proceedings	○	●	○
• co-ordinating on behalf of Client relevant Specialist Consultants to attend Planning tribunal proceedings	○	●	○
• attending Planning tribunal proceedings	○	●	○
• administer the procedures under the building contract for a dispute between the parties	○	○	●
• preparing for court or tribunal proceedings for dispute under the building contract	○	○	●
• co-ordinating on behalf of Client relevant Specialist Consultants to attend mediation, arbitration, court or tribunal proceedings	○	○	●
• attending mediation/arbitration proceedings for dispute under the building contract	○	○	●
• attending court or tribunal proceedings for dispute under the building contract	○	○	●
•	☐	☐	☐

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SCHEDULE B_ SCHEDULED ITEMS

ITEM 1.

PERCENTAGE FEES (EXCL. GST)	Service (see Schedule A)	Amount of percentage fee allocated to each service component:	
See clause D.1 and D.4	A.1 Concept design	0.90 %	
	A.2 Design development	0.90 %	
	A.3 Planning/Development Application	0.00 %	
	A.4 Construction documentation	2.10 %	
	A.5 Contractor selection	0.30 %	
	A.6 Contract administration	1.80 %	
	B.1 Feasibility study	%	
	B.2 Record documents	%	
	B.3 Planning/Development Application: Negotiation	%	
	B.4 Illustration	%	
	B.5 Trade package documentation	%	
	B.6 Other services	%	
	Total Percentage Fee (excl. GST):	6.00 **%**	

LUMP SUM FEES (EXCL. GST)	Service (see Schedule A)	Amount of lump sum fee allocated to each service component (excl. GST):		Tick box if time based rates apply (see Item 2)
See clauses D.1, D.5 and D.6	A.0 Mobilisation Fee*	$ 10,000		
	A.1 Concept design	$	OR	☐
	A.2 Design development	$	OR	☐
	A.3 Planning/Development Application	$	OR	☐
	A.4 Construction documentation	$	OR	☐
	A.5 Contractor selection	$	OR	☐
	A.6 Contract administration	$	OR	☐
	B.1 Feasibility study	$	OR	☐
	B.2 Record documents	$	OR	☐
	B.3 Planning/Development Application: Negotiation	$	OR	☐
	B.4 Illustration	$	OR	☑
	B.5 Trade package documentation	$	OR	☐
	B.6 Other services	$	OR	☑
	Total **Lump Sum Fee** (excl. **GST**):	**$** 10,000		
	GST as calculated on the above amount:	**$** 1,000		
	Total **Lump Sum Fee** (incl. GST):	**$** 11,000		

* *Note: an applicable **Code of Practice** may prohibit or impose a cap on the amount of any Mobilisation Fee payable. Please refer to the **Code of Practice** that is applicable in the state or territory of the Project's **Site.***

ITEM 2.

TIME-BASED RATES	Personnel	Time rate excluding GST	Time rate Including GST	Time unit (either hour, day or month)
See clause D.6	Principal/Director	$ 350	$ 385	Per Hour
	Team Leader	$ 250	$ 275	Per Hour
	Senior Architect	$ 200	$ 220	Per Hour
	Architect	$ 170	$ 187	Per Hour
	Graduate of Architecture	$ 120	$ 132	Per Hour
	Technician	$ 110	$ 121	Per Hour
		$	$	Select...
		$	$	Select...
		$	$	Select...
		$	$	Select...
		$	$	Select...
		$	$	Select...

ITEM 3.

DISBURSEMENTS	Item	Tick box if: Client to Pay	Reimbursement to Architect	Admin Fee (D.7.2)	Rate or basis to be charged (excluding GST unless stated otherwise)
See clause D.7	Fees, taxes, levies or charges paid to authorities	◉	○	☐	Paid by the Client direct
	Advertisements and notices	◉	○	☐	Paid by the Client direct
	Special presentation material, models, perspectives	○	◉	✓	At cost + 15% (D.7.2)
	Rental of special equipment	○	◉	☐	At cost
	Digital data file transfers and digital file conversions	○	◉	☐	At cost
	Photographic records	○	◉	☐	At cost
	Courier and parcel postage services	○	◉	☐	At cost
	Copies of documents other than to Client for Client's own use	○	◉	☐	At cost
	Colour reproductions of documents	○	◉	☐	At cost
	Building contracts	◉	○	☐	Paid by the Client direct
	Travel time	☐	☐	☐	Included in the Fee
	Vehicle use beyond 30km from office	○	◉	☐	At cost (ATO rate per km)
	Interstate, intrastate, or overseas travel	○	◉	☐	At cost (economy air fares)
	International post and telegrams (Denmark to Sydney)	○	◉	☐	At cost
		☐	☐	☐	
		☐	☐	☐	
		☐	☐	☐	
		☐	☐	☐	
		☐	☐	☐	
		☐	☐	☐	
		☐	☐	☐	
		☐	☐	☐	

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ITEM 4.

SPECIALIST CONSULTANT	Consultant	Tick box if: Client to engage	Architect to engage	Notes
See clause E.1	Cost consultant	☐	☐	
	Land surveyor	☐	☐	
	Quantity surveyor	◉	○	Rider Hunt & Partners
	Structural (civil) engineer	◉	○	Ove Arup & Partners (London)
	Mechanical engineer	◉	○	Steensen & Varming (Copenhagen)
	Electrical engineer	◉	○	Steensen & Varming (Copenhagen)
	Hydraulic engineer	☐	☐	
	Fire services engineer	☐	☐	
	Vertical transport engineer	☐	☐	
	Certification (building surveyor)	☐	☐	
	Planning consultant	☐	☐	
	Geotechnical engineer	◉	○	To be appointed
	Landscape architect	☐	☐	
	Interior design consultant	☐	☐	
	ESD Consultant	☐	☐	
	Heritage Consultant	☐	☐	
	Façade Engineer	☐	☐	
	Acoustic consultant	◉	○	To be appointed
	Theatre and stage-machinery consultant	◉	○	To be appointed

ITEM 5.

FORM OF ATTRIBUTION	Insert the preferred form of attribution of the Architect's Moral Rights:
See clause F.2	Jørn Utzon, Architect
	Design: Jørn Utzon, Architect, Hellebæk, Denmark

ITEM 6.

INSURANCES AND LIABILITY	Details		
See clause G.1	Professional Indemnity Insurance	Not less than: $	10,000,000
See clause G.1	Public Liability Insurance	Not less than: $	20,000,000

ITEM 7A.

TIME FOR MAKING PAYMENT

See clause D.3.1

10 business days

If nothing stated, the default is 10 business days.

ITEM 7B.

INTEREST ON MAKING LATE PAYMENT

See clause D.3.2

15 % per annum

If nothing stated, the applicable interest rate is 15% per annum.

SCHEDULE C_ SPECIAL CONDITIONS

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SPECIAL CONDITIONS	Clause No.	Details
See Section L	A.4	Program (the letter's Option 1, staged): the building work is delivered in three stages (Stage I podium; Stage
		II roof shells; Stage III interiors), each under its own building contract.
	A.1	Mobilisation Fee of $10,000 (excl. GST), payable within 5 business days of signing, is an advance on the Fee and
		is deducted from the A.1 Concept design component.
	A.3	The Architect will report in writing when approved variations exceed 5% of the building contract sum, with their
		effect on the forecast Cost of Works.
	A.4	The Client requires Stage I to start on site before the roof design is resolved. The Architect has advised in
		writing (letter of 11.02.1957) that this risks redesign of the podium, with extra time and cost.
	D.8	Redesign of work already documented or built, caused by a later design decision for another stage, is a change
		to the Services under clause D.8 and is notified and agreed in writing.
	A.6	The building contract for each stage is the ABIC Simple Works Contract 2018. The Architect administers it as the
		Client's agent; the Client instructs the contractor only through the Architect (B.2).
	C.2	The Client's representative is the Premier of NSW or a Minister he nominates in writing. Any change of
		representative is notified in writing under clause C.3.
	H.8	The Architect's office is in Denmark. Every notice is also sent by email, so that receipt does not depend on
		overseas post.
	E.1	The structural and services engineers are engaged and paid by the Client. The Architect coordinates them but is
		not responsible for their services.

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This agreement is a standard form for the benefit of architects and their clients. However, architects and their clients are free to agree on conditions of engagement and fees on any basis whatsoever, providing they are not in conflict with the law applicable in the state or territory concerned.

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